Terms and Conditions

Executive Summary

Welcome to Peak Mobile, a Kenyan digital services platform for businesses. This executive summary provides a concise overview of the key elements of our Terms and Conditions, designed to ensure a clear understanding of your rights and responsibilities while using our services.

Our platform enables businesses to send bulk SMS and WhatsApp messages, distribute mobile data and airtime, where you upload your customers' personal data, we process it only on your instructions and in line with the Data Protection Act, 2019. By using our platform, you agree to comply with the terms outlined below. These terms are designed to protect both our clients and Peak, ensuring a fair and transparent relationship.

These Terms and Conditions are designed to create a safe, fair, and lawful experience for all Peak clients. We encourage you to read the full document to understand your rights and obligations.

Table of Contents

Executive Summary 2
1. Introduction 4
2. Definitions 4
3. Services 6
4. Interpretation 6
5. Registration 6
6. Acceptance of Terms 6
7. Use 7
8. No Agency Relationship 7
9. Fees and Commissions and Discounts 8
10. Indemnity 8
11. Confidentiality 8
12. Termination 8
13. Rights to Suspension of Service 9
14. Breach 9
15. Advertising 10
16. Intellectual Property 10
17. Data Protection 10
18. Disclaimer 11
19. Changes 11
Limitation of Liability 12
20. General 12
Governing Law 12
Contact Us 13
Schedule 1: Data Processing Agreement 14

1. Introduction

1.1 The Peak Mobile platform is operated and owned by Peak Mobile Solutions Limited, registration number PVT-9XUG8MXZ, a company duly registered in Nairobi, Kenya, having its principal address at The Promenade, 3rd Floor, General Mathenge Road, Westlands, Nairobi], P.O. Box 28843-00100, Nairobi.

1.2 These Terms and Conditions form an agreement between the Client and Peak Mobile. Kindly ensure that you understand all of them prior to your use of the Peak platform.

1.3 Your registration and/or use of the Peak platform will constitute your consent to be bound by the terms as set out herein.

1.4 Important clauses which may limit our responsibility or involve some risk to you will appear in bold and italics. You must pay special attention to these clauses.

1.5 Should you have any queries regarding the terms, contact our team before transacting or using the Peak platform, at developer@peakmobile.co.ke.

1.6 These Terms and Conditions ("Terms") govern your use of our web-based platform and services, including Network Operator Services, Mobile Data Services, Bulk SMS Services, WhatsApp Messaging Services (collectively, the "Services"). By accessing or using our Services, you agree to comply with and be bound by these Terms. If you do not agree with these Terms, please do not use our Services.

1.7 These Terms include our Acceptable Use Policy, published at [www.peakmobile.co.ke/acceptable-use], and the Data Processing Agreement in Schedule 1.

1.8 Where you have signed a separate written agreement with Peak, that agreement prevails on commercial matters. The documents listed in clause 1.7 continue to apply unless that agreement gives equal or higher protection for personal data.

2. Definitions

Unless the context indicates otherwise, the words on the left shall have the meaning assigned on the right herein below:

Word	Meaning
Access code	Any of your secret numbers used to access our platform, including your personal identification number (PIN) or one-time PIN (OTP), passwords, usernames, or platform digital identity code. It operates as a security and authentication measure.
Acceptable Use Policy	Our Acceptable Use Policy updated from time to time under clause 19.

Word	Meaning
App	The Peak platform through which you can access services granted to you.
Business Day	Any day other than a Saturday, Sunday or public holiday in Kenya.
Client, you or your	The business, organization or person registered to use the platform, and its authorized users.
Client Data	Personal Information of Recipients that you upload to, or generate through, the platform, including phone numbers, message content and delivery records.
Data Protection Laws	The Data Protection Act, 2019 ("the Act"), its regulations, and guidance issued by the Office of the Data Protection Commissioner ("ODPC"), as amended.
Device	The device you use to access the platform such as a laptop, desktop, smartphone and/or tablet or any similar technology.
Intellectual Property	Without limitation, all inventions, specifications, patents and designs, trademarks, service marks, trade names and associated goodwill; copyright and copyrightable works, including software (in source and object code); know-how, trade secrets, databases and rights in databases; domain names; and all other intellectual property rights, whether registered or not, in any country, but excluding Client Data.
Intellectual Property Rights	All rights in and to Intellectual Property.
ISP	An internet service provider, which is an organization that provides access to the Internet.
Operator	A licensed mobile network operator in Kenya, including Safaricom PLC.
Personal Information	Personal data as defined in the Act, any information relating to an identified or identifiable natural person, such as a name, telephone number, email address, identity number or location data.
Process	Any operation or activity, whether automated or not, concerning Personal Information, including collection, recording, storage, retrieval, use, transmission, erasure or destruction. Processing will have a similar meaning.
Profile	The digital identity you create when you register for the platform. You may not have more than one account linked to a Profile.

Word	Meaning
Recipient	A natural person whose Personal Information you upload to the platform, or to whom you send messages or services through the platform.
Sub-processor	A third party engaged by Peak to Process Client Data, including Operators, Meta Platforms (WhatsApp) and cloud hosting providers.
Terms	The terms and conditions for the Peak Mobile platform as set out in this document, including Schedule 1.
Transactions	The different transactions or activities performed by you using the functionalities of the platform, including vending and distribution of services, and orders and purchases of services from us.
URL	Uniform Resource Locator.
We, us, our	Peak Mobile Solutions Limited, PVT-9XUG8MXZ, and its successors or assigns.

3. Services

3.1 Network Operator Services: Connectivity solutions and network management.

3.2 Mobile Data Services: Provision of bulk data and airtime and varied forms of distribution.

3.3 Bulk SMS Services: Sending bulk SMS messages for marketing, notifications, and other lawful purposes.

3.4 WhatsApp Messaging Services: Sending messages through the WhatsApp Business Platform, which are also subject to Meta's WhatsApp Business terms and policies.

3.6 Our Services are delivered through Operators and third-party platforms. Their rules and directives may affect delivery, and we may be required to act on them.

4. Interpretation

4.1 Reference to: one gender includes all genders; the singular includes the plural and vice versa; natural persons include juristic persons and vice versa; a person includes a reference to ~~a~~ that person's authorized representatives, employees, agents or contractors; and a law or regulation is a reference to that law or regulation as amended from time to time.

4.2 Where a number of days is prescribed, the same shall, unless otherwise specifically stated, be reckoned as excluding the first and including the last day, unless the last day is not a Business Day, in which case the last day shall be deemed to fall on the very next Business Day.

5. Registration

5.1 You will be required to register for the platform by providing personal/organizational information in the required data fields accessed via a URL provided.

5.2 Where Peak Mobile has to register you on your behalf, you may be required to provide the required registration information in digital format, preferably email, and you will be required to change the credentials upon access.

5.3 We will verify, record, and store your identity and Personal Information as may be required by our platform and legislation, including the know-your-customer and sender ID requirements of Operators.

5.4 Once registered, you will be required to update your profile with accurate, current, and complete information.

5.5 Keep your login credentials confidential and secure.

5.6 Notify us immediately of any unauthorized use of your account via our support channels.

6. Acceptance of Terms

6.1 By registering you agree to accept these Terms.

6.2 By agreeing to accept these Terms, you declare that you are legally competent to accept and agree to these Terms and, where you accept on behalf of an organization, that you are authorized to bind it.

7. Use

7.1 You agree to use our Services only for lawful purposes and in accordance with these Terms and the Acceptable Use Policy. You should not:

7.1.1 Use our Services in any manner that could damage, disable, overburden, or impair our servers or networks;

7.1.2 Attempt to gain unauthorized access to any part of our Services, other accounts, computer systems, or networks;

7.1.3 Use any automated means to access our Services, other than the APIs and integrations we provide;

7.1.4 Use our Services to send spam, unsolicited messages, or other unauthorized communications, or to message any Recipient without a lawful basis under the Data Protection Laws;

7.1.5 Upload purchased, rented, scraped or harvested contact lists; or

7.1.6 Engage in any conduct that could harm our reputation or interfere with the operation of our Services.

7.2 You should use the platform only on a device for which it is intended, and as per the recommended system specifications.

7.3 Bulk Data bundles are not to be sold to individual customers. Where a customer resells bulk data to individual subscriber, Peak Mobile shall at its sole discretion suspend the Customer's account or elect to terminate the agreement

7.4 Peak Mobile shall not reverse an allocation of resources. It shall be the responsibility of the Customer to ensure the accuracy of the Order. The Customer shall pay the charges for any allocation of resources done on the instructions of the Customer

7.3 Our platform requires your device to have a stable network connection:

7.3.1 You are responsible for any and all network connection costs and/or charges levied by your network provider or operator in connection with the use of the platform.

7.3.2 We cannot guarantee reception of network/s in the area where you may be situated at any given time.

7.3.3 You acknowledge that information transmitted through network connections is susceptible to interception, unlawful access, distortion, and monitoring. We protect data in transit as described in clause 17, but you are responsible for the security of your own devices and connections.

7.3.4 If the network connection is not working, you will be unable to perform any transactions and/or activities on the platform. We will not be liable for any loss or damage occasioned by this failure.

7.4 You may not allow anyone else to utilize the platform on your access code. We will assume that any transaction using your access code and/or profile is authorized by you. You must log out of the application when you have finished using it to prevent anyone else from using it.

7.5 You are responsible for the lawful collection of all Client Data (including any consent required for direct marketing), for the content of your messages, and for honoring opt-out requests from Recipients. We may ask for evidence of consent or lawful basis and may stop sending until it is provided.

8. No Agency Relationship

8.1 You are in no way an agent of Peak Mobile. You are prohibited from representing, whether directly or indirectly, that you act for or on behalf of us.

9. Fees and Commissions and Discounts

9.1 Certain Services may be subject to fees. All fees are non-refundable unless otherwise specified. You agree to pay all applicable fees associated with your

use of the Services in a timely manner. We reserve the right to change our fees at any time, and we will notify you of any such changes in advance.

9.2 Payment Method

Payment shall be made by RTGS or M-PESA into the nominated account.

9.3 Invoicing and Payment

Peak Mobile shall issue an invoice to the Customer for the applicable Service Charges. The Customer shall make payment for the Services immediately prior to use, or within thirty (30) days of the invoice date, as agreed between the Customer and Peak Mobile.

9.4 non-payment

If the Customer fails to make payment for the Services when due, then, without prejudice to Peak Mobile's other rights and remedies under these Terms and Conditions or the Governing Law, Peak Mobile reserves the right to suspend the Customer's further use of the Platform until all outstanding amounts have been paid.

10. Indemnity

10.1 ***You hereby indemnify us from and against all losses, damages, claims, legal proceedings and otherwise, howsoever arising from, or in connection with, the non-fulfilment of any of your obligations under these Terms or arising out of your infringement of any applicable laws and/or regulations.***

10.2 ***We will not be liable in any circumstances for any consequential or indirect loss, however these may arise or for any other unusual losses. In particular we will not be liable for any financial loss, loss of business, profit, savings, revenue or goodwill suffered or sustained by you howsoever arising.***

10.3 We will not be liable for any claims, loss or damage resulting from claims that products or services are defective where we act as an agent for the supplier thereof.

10.4 ***Without limiting clause 10.1, you indemnify us against all claims, complaints, penalties, administrative fines, compensation orders and reasonable legal costs arising from: (a) your collection or supply of Client Data without a lawful basis; (b) messages sent without the consent required by law; (c) your failure to honor opt-out requests; or (d) any instruction you give us that breaches the Data Protection Laws.***

10.5 You agree to indemnify and hold Peak Mobile Solutions Limited, its affiliates, officers, agents, and employees harmless from any claim, demand, damages, or expenses, including reasonable advocates' fees, arising out of or related to your use of the Services, your violation of these Terms, or your violation of any rights of another.

11. Confidentiality

11.1 All information identified by us as confidential or which you should reasonably identify as confidential, including business, commercial (discounts etc.), end-user, scientific or technical information, as well as any price list whether current or not, received by or made available to you pursuant to your relationship with us shall be regarded by you as confidential and shall be treated accordingly, and not be disclosed to third parties, or used for any purpose other than that for which it was disclosed, without our prior written consent.

11.2 We shall keep Client Data confidential and ensure that our personnel and Sub-processors who access it are bound by confidentiality obligations.

11.3 The provisions of this clause shall survive the termination of these Terms.

12. Termination

12.1 We reserve the right to cancel, terminate, or suspend your use of the platform immediately in respect of all transactions or selected types of transactions, or any combination of these actions, as may be permissible in law, without prejudice to any of our other rights, if:

12.1.1 We have reason to believe that the platform is or is likely to be misused;

12.1.2 We suspect illegal use of the platform or its functionalities;

12.1.3 You supply us with false or incorrect information;

12.1.4 You commit a breach of these Terms or the Acceptable Use Policy; or

12.1.5 It is necessary to protect our legitimate interests.

12.2 Upon termination, your right to use the Services will immediately cease, and you must pay all outstanding fees.

12.3 On termination, we will return or delete Client Data in accordance with Schedule 1, unless the law requires us to keep it.

12.4 You may terminate these Terms at any time on [thirty (30)] days' written notice.

13. Rights to Suspension of Service

13.1 We reserve the right to suspend your access to any or all of our Services at our sole discretion, with notice where lawful and practicable, and without liability to you, if we determine or have reasonable grounds to believe that:

13.1.1 Violation of Terms: You have violated any provision of these Terms or the Acceptable Use Policy or any applicable law or regulation.

13.1.2 Security Risk: Your account or use of the Services poses a security risk to us or any third party.

13.1.3 Fraudulent Activity: Your account or use of the Services is suspected of fraudulent or illegal activities.

13.1.4 Non-Payment: You have failed to pay any fees owed for the Services by the due date.

13.1.5 Interference with Services: Your use of the Services may interfere with the normal operation of our Services or networks or the use and enjoyment of the Services by other users.

13.1.6 Compliance with Law: Suspension is necessary to comply with any applicable law or regulation, or to respond to lawful requests from government authorities.

13.1.7 Complaints: We receive Recipient complaints, spam reports or opt-out failures, or Subscriber complaints of unauthorized subscriptions or charges, linked to your account.

13.1.8 Regulatory Directions: An Operator, Meta, the Communications Authority of Kenya or the ODPC directs the suspension of your sender ID, template or traffic, or opens an inquiry concerning your use of the Services.

13.2 Reinstatement: If your account has been suspended, you may contact us to request reinstatement. We may, at our sole discretion, reinstate your account subject to any conditions we deem appropriate.

13.3 Effect of Suspension: During the suspension period, you will not have access to the Services. Suspension does not relieve you of your obligation to pay any outstanding fees or charges during the suspension period.

13.4 Termination: If the issues leading to the suspension are not resolved to our satisfaction, we may terminate your account as outlined in clause 12.

By agreeing to these Terms, you acknowledge and accept our right to suspend your access to the Services under the conditions described above.

14. Breach

14.1 Should you breach these Terms and remain in breach despite receiving notice from us to rectify the same within 7 (seven) days, we may cancel these Terms forthwith. Serious breaches of the Acceptable Use Policy may result in immediate suspension without notice. Any breach of these Terms, in addition to our normal common law remedies, shall entitle us to take legal action without prior notice to you, and you agree to reimburse the costs associated with such legal action on an advocate and client scale.

15. Advertising

15.1 You must ensure that any promotional or advertising material as may be provided to you by us from time to time is always displayed in accordance with our directions and requirements.

15.2 You must ensure that any promotional or advertising material or collateral relating to cellular networks that you wish to design, produce or use is approved by us prior to circulation or publication.

16. Intellectual Property

16.1 Subject to any Intellectual Property Rights held by any other third parties, we keep all Intellectual Property and the Rights in and to the platform, its software, design and documentation. You retain all rights in Client Data and the content of your messages and grant us a limited license to Process them solely to provide the Services.

16.2 We grant you a non-assignable, non-sub-licensable, non-transferable, non-exclusive license to use the platform, which may include updates or upgrades, only for the purposes outlined in these Terms and for no other purposes.

16.3 The license granted to you will commence when you are registered and will continue until it is terminated in line with these Terms, which will result in a cancellation of your access to the platform. On termination of the license, for any reason, you must immediately stop all use of the platform.

16.4 Certain content available on the platform may include content that belongs to third parties. We may provide links to third-party websites as a convenience to you. You agree that we are not liable for any of the following:

16.4.1 the content or accuracy of any such content that belongs to third parties featured on the platform; or

16.4.2 any content featured on the third-party websites that are accessed through the links found on the platform.

16.5 You may not copy, republish, distribute, adapt, modify, alter, decompile, reverse engineer, or attempt to derive the source code of or create a derivative work of the platform, its contents, including any Intellectual Property therein, its design, any updates to the platform or proprietary features in relation to it, or any parts of it.

16.6 You indemnify us against all actions, claims, costs, demands, expenses, and other liabilities suffered or incurred by us as a result of any third-party claims relating to your unauthorized use of the platform, the content thereon, or any other Intellectual Property and Intellectual Property Rights flowing from the foregoing.

17. Data Protection

17.1 We Process Personal Information in three capacities:

17.1.1 as a **data controller** of information about you and your authorized users (such as account, log-in and billing data), which we Process to open and operate your Profile and account, provide the Services,

prevent fraud, meet our legal obligations and improve our Services, as described in our Privacy Policy;

17.1.2 as a **data processor** of Client Data, for which you are the data controller. We Process Client Data only on your documented instructions and in accordance with the Data Processing Agreement in Schedule 1; and

17.2 We shall not use Client Data for our own purposes, including analytics, profiling, product development or marketing, other than anonymized statistics that cannot identify any Recipient.

17.3 You warrant that you have a lawful basis under the Data Protection Laws for all Client Data, and that you have informed Recipients that their data will be Processed by service providers such as Peak Mobile and may be transferred outside Kenya.

17.4 You authorize us to engage the Sub-processors listed in Schedule 1, some of which Process data outside Kenya. We transfer Personal Information outside Kenya only as permitted by Part VI of the Act and the Data Protection (General) Regulations, 2021.

17.5 You must notify us before uploading any data that the Act requires to remain in Kenya (for example health care, basic education, public finance or election data).

17.6 We shall apply appropriate technical and organizational measures to protect Personal Information and shall notify you of any breach affecting Client Data without undue delay and, where practicable, within forty-eight (48) hours of becoming aware of it.

18. Disclaimer

We are not responsible for any loss or damage where:

18.1 ***Someone finds out your access code through no fault of ours;***

18.2 ***Any technical or other problem (interruption, malfunction, downtime or other failure) affects the platform, a third-party system or any part of any database and is beyond our reasonable control;***

18.3 ***Any Personal Information or other data is directly or indirectly lost or damaged because of technical problems, power failures, unlawful acts (such as data theft), any harmful computer program or virus, or your own negligence, provided that we have complied with our security obligations under clause 17 and the Data Protection Laws;***

18.4 ***Any failure or problem affects goods or services provided by any other party, for example any telecommunication service provider, ISP, electricity supplier, local or other authority, save for our responsibility for our Sub-processors under Schedule 1; or***

18.5 ***Any event that we have no control over.***

19. Changes

19.1 We are entitled to change the type of transactions that can be performed with the platform, amend any feature or benefit as well as the fees, discounts, commissions, and costs relating to the transactions from time to time by giving you reasonable prior notice thereof.

19.2 We are further entitled to change these Terms from time to time by giving you at least [fourteen (14)] days' notice by email or on the platform, except where a change is required sooner by law or by a regulator.

19.3 Your continued use of the platform, in the event of a change to these Terms, will constitute your acceptance of and agreement to such change.

Limitation of Liability

To the maximum extent permitted by law, Peak Mobile Solutions Limited shall not be liable for any indirect, incidental, special, consequential or punitive damages, or any loss of profits or revenues, whether incurred directly or indirectly, or any loss of data, use, goodwill, or other intangible losses, resulting from:

19.4 ***Your use of or inability to use our Services;***

19.5 ***Any unauthorized access to or use of our servers and/or any personal information stored therein, save where caused by our failure to comply with our security obligations;***

19.6 ***Any interruption or cessation of transmission to or from our Services; or***

19.7 ***Any bugs, viruses, trojan horses, or the like that may be transmitted to or through our Services by any third party.***

19.8 ***Our total aggregate liability arising under or in connection with these Terms shall not exceed the fees paid by you in the [twelve (12)] months preceding the event giving rise to the claim.***

19.9 Nothing in these Terms limits or excludes liability for fraud, willful misconduct or gross negligence, or any right or remedy of a data subject under the Data Protection Laws.

20. General

20.1 The invalidity, illegality, or unenforceability of any of the clauses in these Terms will not affect the validity, legality, and enforceability of the remaining clauses of these Terms.

20.2 We may discontinue the platform on reasonable notice to you, save where immediate discontinuance is required by law or a regulator. On termination of your registration to the platform, all rights granted to you in respect of the platform shall cease immediately.

20.3 If your account is stopped or cancelled for any reason, we may suspend your access to the platform until you have a new account registered on the platform.

20.4 No indulgence, leniency or extension of time which we may grant or show to you shall in any way prejudice us or preclude us from exercising any of our rights in the future.

20.5 We shall not be bound by any representation, express or implied term, warranty, promise, or the like not recorded herein.

20.6 These Terms, including Schedule 1 and the documents in clause 1.7, are the entire agreement between the parties in respect of their subject matter. Save for changes made under clause 19, no variation shall be valid unless in writing and agreed by both parties.

Governing Law

These Terms shall be governed by and construed in accordance with the laws of Kenya, without regard to its conflict of law principles. Any disputes arising out of or in connection with these Terms shall be resolved in the courts of Kenya. Nothing in these Terms prevents a data subject from lodging a complaint with the ODPC.

Contact Us

If you have any questions about these Terms, please contact us at chat@peakmobile.co.ke or through our online support page.

Schedule 1: Data Processing Agreement

This Schedule is the contract required by section 42 of the Act between the Client (data controller) and Peak (data processor) for Client Data. It also covers transfers of Client Data outside Kenya under Part VI of the Act, regulation 40 of the Data Protection (General) Regulations, 2021 and the ODPC Guidance Notes for Cross-border Data Transfers (2026).

Item	Description
Purpose	Delivering SMS, WhatsApp messages, data and airtime to Recipients on the Client's instructions, with delivery reports and opt-out records.
Data subjects	The Client's customers, staff, members and other Recipients.
Personal Information	Phone numbers, names (if supplied), message content, delivery status and timestamps, opt-out records. No sensitive personal data.
Duration	While the Client uses the Services, plus the retention periods in paragraph 8.

1. **Client obligations.** The Client is responsible for the lawfulness of the Processing, including its lawful basis, any consent required for direct marketing, and notices to Recipients (including that data may be transferred outside Kenya). The Client shall not upload sensitive personal data and shall notify Peak Mobile before uploading data that must remain in Kenya under section 50 of the Act.
2. **Peak Mobile obligations.** Peak shall: (a) Process Client Data only on the Client's documented instructions and inform the Client if an instruction appears unlawful; (b) not use Client Data for its own purposes; (c) ensure its staff are bound by confidentiality; (d) apply the security measures in Annex B; (e) help the Client respond to Recipients' requests and carry out impact assessments; and (f) provide the information needed to demonstrate compliance.
3. **Sub-processors.** The Client authorizes the Sub-processors in Annex A. Peak Mobile shall give [fourteen (14)] days' notice of any new Sub-processor, and the Client may object on reasonable data protection grounds and, if the objection is not resolved, terminate the affected Services. Peak Mobile shall bind each Sub-processor to terms no less protective than this Schedule or, where a Sub-processor contracts only on its standard terms (such as Meta or a cloud provider), first document its assessment that those terms give appropriate safeguards. Peak Mobile remains liable for its Sub-processors and shall suspend any that can no longer meet these safeguards.
4. **Transfers outside Kenya.** Peak Mobile shall transfer Client Data outside Kenya only on a basis permitted by regulation 40 (appropriate safeguards, an

adequacy decision, or necessity, including its legitimate interest in secure cloud hosting). Before any transfer, Peak shall assess the destination and the recipient's safeguards and carry out an impact assessment where the risk is high. It shall keep the records required by regulation 41(2), make them available to the Client and the ODPC on request, and notify the ODPC of its transfers where required.

5. **Public authority requests.** Where legally permitted, Peak Mobile shall tell the Client of any public authority request for Client Data and disclose only the minimum legally required.

6. **Breaches.** Peak Mobile shall notify the Client of any breach affecting Client Data without undue delay and, where practicable, within 48 hours, describing its nature, the data and people affected, and the measures taken. It shall cooperate so that the Client can notify the ODPC within 72 hours.

7. **Audit.** Once a year on reasonable notice (or after a breach or regulator request), the Client may verify Peak Mobile's compliance, including for Sub-processors. Peak may satisfy this with current certifications or audit reports. Both parties shall cooperate with the ODPC.

8. **Return and deletion.** When the Services end, Peak Mobile shall return or delete Client Data within [thirty (30) days, as the Client chooses, unless the law requires retention. Delivery logs and opt-out records may be kept for [twelve (12)] months for billing and Operator compliance.

9. **Liability.** Clause 19 of the Terms applies to this Schedule. It does not limit any rights of a Recipient under the Act.

Annex A: Sub-processors

Sub-processor	Activity	Country	Transfer basis and safeguards
[Operators, e.g. Safaricom, Airtel, Telkom]	SMS, data and airtime delivery	Kenya	Not a cross-border transfer
Meta Platforms (WhatsApp)	WhatsApp delivery	California, US	Necessity (Client-requested service); Meta data processing terms; Peak assessment dated [date]
Google Cloud	Hosting and storage	[Europe-west4]	Provider data processing terms; legitimate interest; Peak assessment dated [date]
[SMS aggregator, Safaricom]	Message routing	[Nairobi, Kenya]	Not a cross-border transfer

Annex B: Security measures

Area	Measures
Access	Role-based, need-to-know access; multi-factor authentication; periodic access reviews.
Encryption	TLS 1.2 or higher in transit; encryption at rest (e.g. AES-256).
Monitoring	Access and change logs kept for [12 months] and reviewed; firewalls; malware protection; patching.
Resilience	Encrypted, tested backups; business continuity and disaster recovery plans.
Hosting	Data centers certified to be [ISO/IEC 27001 or equivalent].
People and incidents	Staff confidentiality undertakings and annual training; documented breach response procedure.